



New Member Orientation

Member Name: William Volodarsky
Membership Type: Gold Monthly Greater NYC Metro

Welcome to 24 Hour Fitness!

Your Membership Packet Includes: Your Membership Agreement; the Membership Policies; the Physical Activity Readiness Questionnaire. We want you to get the most out of your membership, and to inform you of some key points about your agreement and get you started!

Club Access: You have selected the club access and type of membership that's right for you. As a reminder, club access depends on type of membership purchased. These are the membership types:

- Platinum (access to all 24 Hour Fitness® clubs)
- National (access to all 24 Hour Fitness® clubs)
- Gold (access to all 24 Hour Fitness® clubs within the selected Region)
- Ignite (access to Club of Enrollment only)
- Silver (where available) (cardio equipment and weights only at Club of Enrollment)

For example, if you purchase a 'Platinum', or 'National' membership, you have access to all 24 Hour Fitness® clubs. A 'Gold' membership provides you access to all 24 Hour Fitness® clubs within your selected region. A 'Ignite' membership provides you access to your Club of Enrollment only, while purchasing a 'Silver' membership would only allow you access the cardio equipment and weights at your club of enrollment. See Membership Details Page for more details regarding access rights of your membership.

Special Services: Your membership agreement does not include group or individual training, specialized classes or special services that are subject to separate agreements with 24 Hour, and may require payment of a fee.

If you also purchased personal training sessions, please note the following:

- Please refer to page 1 of your personal training agreement for details about expiration of your personal training.
- Your trainer may change during the course of your training agreement.
- If your agreement allows for rescheduling and you need to re-schedule a personal training appointment, 24 hours' notice is required to avoid being charged the full session.

For each workout, all members must:

- (1) Check in at the front desk. You can enroll in Touchless Check-In via the 24GO® app and scan your phone at the front desk using the QR code created. You can also enroll in the Cardless Check-in system to allow you to access the club with a finger scan and a check-in code instead of having to bring a Photo ID with you. If you do not wish to enroll in Touchless Check-In or Cardless Check-in systems, you will need to bring in a government-issued photo ID to check into the club each time you work out.
- (2) Bring a lock for the locker room. It is also recommended that you bring a workout towel.
- (3) Please use cleaning supplies to wipe down equipment.

'Membership Freeze' Rules

You may be eligible to freeze your membership for a temporary or extended period upon proof of the following:

- Medical reasons
- Military service or extended volunteer assignment
- Temporary job transfer

Please see your Membership Policies for more information

Cancellation Information:

3 Day Cancellation Right: You are entitled to a 3 business day period (3 day period) to notify 24 Hour Fitness that you wish to cancel your agreement and receive a full refund. Please see '...Buyers Right to Cancel page 1...' And Section 6 of your agreement for more details.

After the 3 Day Period: You may cancel your membership by providing written notice to 24 Hour Fitness, P.O. Box 787, Carlsbad, CA 92018; email cancel@24hourfitness.com; or visit www.24hourfitness.com/members/cancel. Upon receipt of your request to cancel your membership, 24 Hour Fitness will apply any prepaid last month's dues (if applicable); your club access and membership will end after 30 days. See Section 6 of your Agreement for more details.

Dues Increase: Monthly dues may only be increased once per calendar year. *No increase within the first 12 months of your membership.

Please see Section 3 of your agreement for more details.

Annual Fee: Each year, you will be required to pay a non-refundable Annual Fee plus applicable taxes, if any, so long as the membership is in effect.

Please see page 1 and Section 3 of your agreement for more details.

Arbitration Agreement and Waiver of Class Action and Jury Rights:

- All disputes between you and us, except personal injury claims or those filed in small claims court, will be resolved through binding arbitration.
- Any arbitration under this agreement will take place on an individual basis; class arbitrations and class actions are not permitted
- If you do not want to be bound by this arbitration provision you must notify us within 90 days of signing your Agreement by providing written notice as detailed in Section 8(a).
- Personal injury claims are not subject to arbitration; personal injury claims will be handled in the courts

Please see Section 8 of your agreement for more details.

Communications: See Sections 3(g) through 3(i) for information regarding marketing and account communications including information regarding our privacy policies.

Release of Liability and Assumption of Risk: This agreement includes a Release of Liability and Assumption of Risk Provision in Section 10.

MEMBERSHIP POLICIES & CLUB RULES – Member#: MBR16137682

24 Hour Fitness USA, LLC. ("24 Hour") Membership Policies ("Policies") and rules or signs posted in clubs or on our website ("Rules") ensure a safer and more enjoyable environment in which to exercise. You agree to follow the Policies and Rules. 24 Hour may, in its sole discretion, modify the Policies and Rules without notice at any time. It's your responsibility to know and follow the most current Policies and Rules. If there is any conflict between these Policies and the posted club Rules, these Policies and Rules apply. Policies are also available at www.24hourfitness.com.

EQUAL OPPORTUNITY POLICY STATEMENT: 24 Hour seeks, enrolls and maintains memberships without regard to race, gender, age, religion (including grooming), color, national origin, ancestry, physical or mental disability, medical condition, pregnancy, marital or registered domestic partner status, sex, sexual orientation, gender identity and expression, genetic characteristics and information, military or veteran status, or any other legally protected category. It is further 24 Hour policy that no circumstance or conduct undertaken by club personnel shall have the effect of discrimination on the basis of any of the aforementioned classifications. All club members shall have full and equal access to the club facility. All members with disabilities shall be entitled to reasonable accommodations for their physical and mental impairments. Any member who believes they have been/are being treated unfairly on any of the aforementioned matters should first report to club management of 24 Hour at 1(800)432-6348.

RESTROOM AND LOCKER ROOM ACCESSIBILITY-TRANSGENDER EQUAL OPPORTUNITY

POLICY: As set forth in 24 Hour's Equal Opportunity Policy, all members shall have full and equal access to the club facility. Consistent with this Policy, all members shall have access to the restroom and locker room facilities that correspond to the member's gender identity, regardless of the member's sex assigned at birth. For example, transgender women (who were born male but identify as female) are permitted to use the women's facilities, and vice versa for transgender men. Each member should determine the most appropriate option for her/him/themself. Any member who has a need or desire for increased privacy, regardless of the reason, will be provided access to a single-person facility, when available. No member, however, shall be required to use such a facility.

Any member who believes that they have been/are being treated unfairly on any of the Equal Opportunity policies above should report to club management or call us at 1 (800) 432-6348.

PERSONAL INFORMATION AND PRIVACY: Please consult our Privacy Policies for a description of our practices with respect to collection, sharing and privacy of your personal information. Both our Website Privacy Policy (covering information we collect through our website) and our general Privacy Policy (covering information we collect offline, such as when you sign up at one of our clubs) are located on our website at www.24hourfitness.com.

CHECK-IN: You must check in at the front desk on each club visit by enrolling in (1) the Touchless Check-In System using the 24GO® app, or (2) the Cardless Check-in system using your finger scan and a 10-digit check-in code (such as your phone number), or (3) bringing in an original government issued photo ID. You are not required to enroll in either the Touchless Check-in or Cardless Check-in systems. Please visit our website at www.24hourfitness.com for more information.

MEMBERSHIP FREEZE POLICY: 24 Hour will only freeze your membership if you are in good standing, all initiation fees are paid, you are current on your membership dues and Annual Fee, and you provide at least ten days' notice. If you have a Commitment Agreement and freeze your membership within the Commitment period, your Commitment period and obligation will be extended for the amount of time your membership was on freeze.

There are four circumstances that may qualify you for a freeze: **Medical Disability (3-6 months),**

Extended Volunteer Assignment (3-6 months) or Temporary Employment Transfer (3-6 months),

Active Duty Military Transfer (no Min or Max). In order for you to qualify for a freeze, you must provide 24 Hour with written verification from your physician, or a copy of your transfer, deployment or extended volunteer assignment orders, or verification from your employer, on company letterhead, that you are being temporarily transferred more than 25 miles from the nearest 24 Hour location to which you have access.

Extended Freeze: You may request for an extended freeze for reasons other than those listed above. The maximum length of an extended freeze is 12 months. If 24 Hour does not receive notification to reactivate or further extend your freeze within 12 months, your membership agreement may be terminated.

Dues During Freeze: No further dues will be collected during your approved freeze and your right to access 24 Hour facilities during the freeze will be suspended. Notwithstanding the foregoing, you will still be required to pay an Annual Fee (plus applicable taxes), as provided in your membership agreement, during your approved freeze so long as your membership is in effect. In the event your membership is prepaid, the term of the prepaid membership shall be extended, without further dues, for the same period of the freeze. Except for military freezes greater than 6 months or unspecified, your membership will be reactivated and your monthly EFT or credit card charge will automatically resume at the end of your freeze period.

GUEST PRIVILEGES: 24 Hour encourages you to bring friends, relatives and business associates for a guest visit. We recommend that you make an appointment for your guest's visit. A club tour/orientation may be required before your guest can access the club. Guests must be at least 18 years old, check in at the front desk, complete the guest registration process, and sign a Liability Waiver. A parent or legal guardian may bring a minor aged 12 or up as a guest if the adult member agrees to sign the appropriate release forms. 24 Hour may restrict the number of guests and times you may bring guests.

BUDDY PASS PRIVILEGES: If you have a Buddy Pass as part of your membership, you may designate one (1) individual as your buddy. You may designate a new buddy once every six (6) months. You as the host member must always be present for your buddy to access the club. Your buddy must be at least 18 years old (12 with a parent or guardian), complete the buddy registration process and sign a Liability Waiver. Buddies must check in at the front desk with their host each time prior to accessing the club. Minors wishing to use 24 Hour facilities on a Buddy Pass will be required to have a parent/guardian present during the first visit to register the minor buddy and sign the appropriate release forms. Buddies may not utilize any 24 Hour Facility on a Buddy Pass without their host member being present at all times. If a buddy attempts to enter the facility without their host member or violates club rules, the host's and buddy's right to access 24 Hour's facilities may be permanently revoked. A Buddy is not entitled to access any specialty areas, premium services, or paid programs (e.g., Recovery24 or Premium Fit24). 24 Hour may restrict the times you bring a buddy.

LOCKERS: 24 Hour provides lockers for your use on a daily basis and suggests using a lock to

responsible for any theft or damage to your property. If you leave a lock on a locker overnight, 24 Hour will consider your property abandoned and has the right to donate property to charity.

USE OF 24 HOUR FACILITIES

Availability of Facilities: 24 Hour facilities or services, including but not limited to, classes, equipment, babysitting, basketball, saunas, whirlpools or pools may have limited hours, be discontinued altogether at any time, or be offered on a "first come first serve" basis. 24 Hour reserves the right to charge a separate participation or reservation fee for any or all of these facilities or services. Use of 24 Hour facilities or services are authorized and limited pursuant to your membership agreement.

Conflicts Regarding Use: Do not linger/monopolize the equipment, as other members may want to use it; observe gym etiquette. If there is usage conflict, let 24 Hour mgmt. resolve it.

Sports Courts & Specialty Classes: 24 Hour may charge for use of sports courts and special classes.

Pool, Whirlpool, Sauna & Steam room: 24 Hour requires you to shower before using the pool, whirlpool, and sauna or steam room. There are only lifeguards on duty at a few 24 Hour facilities. Check clubs for further details. The use of the pool, whirlpool, sauna or steam room are at your risk. While using the pool, do not jump lanes, dive or engage in horseplay. Lap swimmers have priority over casual swimmers. You must also follow the specific Rules that any 24 Hour clubs post regarding the use of the pools, whirlpools, saunas, and/or steam rooms in 24 Hour facilities.

Weights & Other Equipment: There are specific Rules posted regarding the use of the weights and other equipment in 24 Hour facilities. As a courtesy, please replace the weights on the rack after you use them and wipe off any benches after your use.

No Solicitation: 24 Hour facilities are provided for the private use of club members only and are not open to the public. Any solicitation within any club is absolutely forbidden. This includes, for example: solicitation for profit, political purposes or any other reason; use of petitions; distributing or posting leaflets, notices or advertising anywhere in a club facility; or leaving multiple copies of leaflets or other papers in any club.

GENERAL POLICIES FOR MINORS: Please check with the front desk for Club specific Rules.

You and your minor agree to follow all of 24 Hour Fitness' Membership Policies and Club Rules. Should you and/or your minor fail to follow any of 24 Hour's Membership Policies or Club Rules, 24 Hour Fitness reserves the right to revoke any permission for you and/or your minor to access its Facilities or otherwise restrict or prohibit access to its Facilities at any time for any or no reason, as determined in 24 Hour Fitness' absolute sole discretion.

Minors 12 - 17: You must be at least 12 years of age to use 24 Hour Fitness Facilities. Minors need not be accompanied by a parent or guardian if the minor is a member and their parent or guardian signed the financial guaranty or if the minor is a guest and the parent or guardian signed the Release of Liability. 24 Hour Fitness reserves the right, in its discretion, to require that a parent or guardian accompany a minor.

Minors Under 12: You may not use 24 Hour Fitness Facilities, be on the workout floor, on the basketball court, or in the wet areas (such as the pool or sauna) at any time, unless the minor is participating in a 24 Hour Fitness approved youth program. 24 Hour Fitness does not permit children over six years old of the opposite sex in the locker rooms with the exception of Restroom and Locker Room Accessibility-Transgender Equal Opportunity Policy.

PROHIBITED ITEMS AND ACTIVITIES

No Alcohol, Drugs, or Smoking: You cannot engage in any activity at 24 Hour while under the influence of illegal drugs or alcohol. 24 Hour does not permit smoking, vaping, alcohol, or illegal drugs, including steroids, in any of its facilities.

No Weapons: No weapons of any kind are permitted in 24 Hour facilities.

Taking Photos or filming others is not permitted without prior knowledge and consent; and under no circumstances is any photography or filming permitted within the Kids' Club, locker room, steam room, or sauna areas.

Food & Beverages: 24 Hour reserves the right to limit the consumption of food or beverages in workout areas.

Personal Training: No member may train another member for compensation or engage in competitive activities in any 24 Hour facility. If 24 Hour determines that such training or activity occurs at a 24 Hour facility, the trainer and/or trainee may lose their membership.

Outside Equipment: 24 Hour reserves the right, in its sole discretion, to limit or restrict the use of outside equipment in the club.

DRESS POLICY: 24 Hour requires you to wear appropriate clothing and footwear while in its facilities such as gym shorts, T-shirts, undergarments or tights with all apparel, jogging, aerobic and sweat outfits. Street clothes/shoes and jeans are not appropriate. Shower shoes and swimming suits are all right in the pool area, but cutoffs are not. Racquetball/basketball shoes are required on the courts. No street or black-soled shoes permitted. Being barefoot in the general workout area is prohibited. 24 Hour Fitness recommends closed toed shoes be worn on the general workout floor at all times, and wearing opened toed shoes or socks alone is at your own risk.

TOWEL POLICY: Carrying a workout towel is recommended. Please use the cleaning station supplies to wipe down equipment after use.

CONDUCT: While in 24 Hour facilities, 24 Hour does not permit and will not tolerate any inappropriate conduct. You may not engage in any conduct in any 24 Hour facility that includes, without limitation, using loud, abusive, offensive, insulting, demeaning language, profanity, lewd conduct or any conduct that harasses or is bothersome to members, guests or employees.

VIOLATION OF POLICIES OR RULES: If any member or guest violates any of the Policies or Rules, 24 Hour will ask that person to stop or leave. A member's violation of any of the Policies or Rules may also cause 24 Hour, in its sole discretion, to terminate that person's membership and/or other agreements.

STERIOD WARNING: Use of steroids to increase strength or growth can cause serious health problems. Steroids can keep teenagers from growing to their full height; they can also cause heart disease, stroke, and damage liver function. Men and women using steroids may develop fertility problems, personality changes, and acne. Men can also experience premature balding and development of breast tissue. There are also civil and criminal penalties for the unauthorized sale, use, or exchange of anabolic steroids.

protect your property. Do not leave valuable property in a locker at any time. 24 Hour is not

TOTAL PAYMENT OBLIGATION \$44.77

Health Club Certificate of Registration Number: HC01914

**CLUB OF ENROLLMENT**

Club Number: 00642 **Address:** 150 Sylvan Avenue
City: Englewood Cliffs **State:** NJ **Zip:** 07632
Club Access Level: Regional:Gold Monthly
Emp# Sold By: 1498X

CLUB MEMBERSHIP AGREEMENT 24S15851089

Membership: Regional:Gold Monthly Greater NYC Metro **00642**
Primary Agreement # **Member #**
MBR16137682

PERSONAL INFORMATION

Last Name: Volodarsky **First Name:** William
Birthdate: XX-XX-1996 **Age:** 29 **Gender:** M
Address: 2 horizon rd **City:** FORT LEE **State:** NJ **Zip:** 07024
Phone: (347) 4301905 **Email Address:** williamvolodarsky+24hrfitness@gmail.com
Employer: **Corp. Id:**

ACCOUNTING

Initiation Fee:	\$ 0.00	See the Payment and Transfer Authorization of this agreement for details on payment plans and/or payment authorization.	Annual Fee	
First Month's Dues:	\$ 0.00		Annual Fee Amount:	\$ 64.99
Last Month's Dues:	\$ 41.99		EFT/RCC Begin Date:	04/02/2026
Re-Write Fee:	\$ 0.00		(continuing annually on or about the same date for so long as the membership is in effect. See Section 3 for details)	
Taxes/Fees/Surcharges:	\$ 2.78	Amount Received:	\$ 44.77	
Total Due Now (non-refundable):	\$ 44.77	Balance Due:	\$ 0.00	

ACKNOWLEDGEMENT OF AGREEMENT TERMS – BUYER'S RIGHT TO CANCEL – E-SIGNATURE – AGREEMENT TERM

THIS AGREEMENT INCLUDES A RELEASE OF LIABILITY AND ASSUMPTION OF RISK PROVISION IN SECTION 10. By signing below,

1. You acknowledge and agree that you have read this agreement and you agree to all the terms on all pages of this agreement and acknowledge that you have received a copy of it and the membership policies; AND
2. You consent to the use of an electronic signature to record your commitment to the terms of this Agreement.

NOTICE TO CUSTOMER: YOU ARE ENTITLED TO A COPY OF THIS CONTRACT AT THE TIME YOU SIGN IT. YOU MAY CANCEL THIS CONTRACT AT ANY TIME BEFORE MIDNIGHT OF THE THIRD OPERATING DAY AFTER RECEIVING A COPY OF THIS CONTRACT. IF YOU CHOOSE TO CANCEL THIS CONTRACT, YOU MUST EITHER: (1) SEND A SIGNED AND DATED WRITTEN NOTICE OF CANCELLATION BY REGISTERED OR CERTIFIED MAIL, RETURN RECEIPT REQUESTED TO: 24 HOUR FITNESS, 150 Sylvan Avenue, Englewood Cliffs, NJ, 07632 or P.O. BOX 787, CARLSBAD, CALIFORNIA, 92018, OR (2) PERSONALLY DELIVER A SIGNED AND DATED WRITTEN NOTICE OF CANCELLATION TO: 24 HOUR FITNESS, 150 Sylvan Avenue, Englewood Cliffs, NJ, 07632. IF YOU CANCEL THIS CONTRACT WITHIN THE THREE-DAY PERIOD, YOU ARE ENTITLED TO A FULL REFUND OF YOUR MONEY. IF THE THIRD OPERATING DAY FALLS ON A SUNDAY OR HOLIDAY, NOTICE IS TIMELY GIVEN IF IT IS MAILED OR DELIVERED AS SPECIFIED IN THIS NOTICE ON THE NEXT OPERATING DAY. REFUNDS MUST BE MADE WITHIN 30 DAYS OF RECEIPT OF THE CANCELLATION NOTICE TO THE HEALTH CLUB. 'OPERATING DAY' MEANS ANY CALENDAR DAY ON WHICH PATRONS MAY INSPECT AND USE THE HEALTH CLUB'S FACILITIES AND SERVICES DURING A PERIOD OF AT LEAST EIGHT HOURS, EXCEPT SUNDAYS AND HOLIDAYS. THIS CONTRACT SHALL NOT OBLIGATE THE BUYER FOR MORE THAN THREE YEARS (36 MONTHS) FROM THE DATE THIS CONTRACT IS SIGNED. A HEALTH CLUB SERVICES CONTRACT SHALL NOT OBLIGATE THE BUYER TO RENEW THE CONTRACT.

Your Agreement is a MONTHLY PAYMENT - Membership**BEGINS:** 03/18/2026**DISCOUNTED MONTHLY DUES Through:** 04/17/2026**Amount:** \$0.00**REGULAR MONTHLY DUES Beginning On:** 04/18/2026**Amount:** \$41.99

Your Monthly Payment Membership may be terminated as explained in Section 6. Initiation fees and first month and prepaid last month's dues are nonrefundable, unless specifically stated otherwise in that section. You understand that your agreement is for a continuous service and the minimum term of your agreement includes any prorated days (up to 6 days) plus your first month and your last month (if you have prepaid your last month's dues) (depending on the number of pro-rated days your minimum term is 30 days), which begins on the date you sign this agreement. You understand that your agreement begins on the day shown above after 'Begins: ____'. You understand that you shall make monthly payments for your agreement and that 24 Hour will charge you for those monthly payments on a monthly basis (see Payment and Transfer Authorization for first bill date) and again on or around the same date each month thereafter while your agreement is in effect. Your monthly dues rate is shown above and that same rate shall apply each month (except during the discounted monthly dues period and subject to any dues increases pursuant to Section 3(c) of this agreement) regardless of the number of days in each month. In other words, the same rate will apply for February (a 28-day month) as March (a 31-day month). Prepaid last month's dues are based upon a 30-day month. Upon receipt of your request to cancel your membership, 24 Hour will apply your last month's dues (if applicable); your club access and membership will terminate at the end of the then paid term. Please see Section 6 of your agreement for more details. I certify that I have received a completed and signed copy of this membership agreement and of any other document which I have signed. This represents the entire agreement between the buyer and health club facility. I further certify that I have read both sides of this agreement prior to affixing my signature and understand and agree to all terms and conditions as stated.

NOTICE TO BUYER: You are entitled to a copy of this contract at the time that you sign it. Keep it to protect your legal rights. Do not sign this contract if it is blank. I certify that I have received a completed and signed copy of this membership agreement and of any other document which I have signed. This represents the entire agreement between the buyer and the health club facility. I further certify that I have read both sides of this agreement prior to affixing my signature and understand and agree to all of the terms and conditions as stated.

MEMBER SIGNATURE: William Volodarsky**DATE SIGNED:** 03/18/2026 3:29 P.M.**COSIGNER**

Parent or Guardian: On behalf of my minor child and myself, I agree to all the provisions of this Agreement, including the Release of Liability and Assumption of Risk and Agreement to Arbitrate provisions and I agree to defend and indemnify 24 Hour to the fullest extent permitted by law for any claim brought by my minor child against 24 Hour. I also promise to pay any financial obligation that my minor child does not pay for any reason.

Financial Cosigner: I agree to the Agreement to Arbitrate provisions in this agreement, and I promise to pay any financial obligation that the member does not pay for any reason. I also agree to defend and indemnify 24 Hour to the fullest extent permitted by law for any claim brought against 24 Hour by the member.

Whether Parent or Cosigner, I understand my obligation can only end if the member/guardian properly terminates this agreement. If I signed the Payment and Transfer Authorization, I

agree to directly pay according to the terms in this agreement.

COSIGNER SIGNATURE:

DATE SIGNED:

Last Name:

First Name:

Home ph.: ()

Street Address:

City:

State:

Zip:

PAYMENT AND TRANSFER AUTHORIZATION	
	Member Name: William Volodarsky Member #: MBR16137682 Agreement #: 24S15851089
PAYMENTS FOR TOTAL DUE NOW	PAYMENT SCHEDULE FOR TOTAL DUE NOW
Total Due Now (non-refundable): \$44.77 Deposit Received: \$44.77 Balance Due: \$0.00	Payment Amount: \$N/A Payment Date: N/A Payment Amount: \$N/A Payment Date: N/A Payment Amount: \$N/A Payment Date: N/A
AUTHORIZATION FOR BALANCE DUE	
Account Type: Account Holder Name: Expiration Date:	Name of Depository Institution: Account Number: Routing Number (if applicable):
I want amounts I owe to 24 Hour Fitness USA, LLC, ("24 Hour") under this Agreement to be paid through one of the following (a) my debit card, (b) debits to my bank account through the ACH ((a) and (b) each an "EFT"), or (c) charges to my credit card account ("CC"), as indicated above, for the purpose of making the scheduled payments on the Balance Due (together with any related fees, taxes or charges). My signature below constitutes my authorization and agreement to the following terms for those EFT or CC charges: 1. I authorize 24 Hour, on the scheduled payment dates, or within 2 business days after such dates, to charge my above listed credit card account, or to initiate an EFT from the account I designated above or any successor or replacement card or account, for the Balance Due indicated above. If my card or account expires or is replaced, I agree to notify 24 Hour promptly of my new card or account. 2. My authorization will remain in effect until cancelled by 24 Hour, or by me. I may cancel by providing notice to 24 Hour in writing at 24 Hour Fitness, 150 Sylvan Avenue, Englewood Cliffs, NJ, 07632 or 24 Hour Fitness, P.O. Box 787, Carlsbad, CA, 92018, by email to cancel@24hourfitness.com or by visiting www.24hourfitness.com/members/cancel. Even after my notice of cancellation, I authorize 24 Hour to charge or debit my account for any Balance Due amounts I owe under this Agreement up to the date this Agreement ends and I agree to be bound by the terms and conditions of this Agreement until my Agreement privileges end. 3. For EFT (a debit to my checking or savings account, or debit card) charges only, I understand that you will notify me at least 10 days in advance of any EFT debit that will be more than three times the normal monthly debit amount. Upon my written request, you will notify me if the amount of the EFT transfer will vary by any amount. 4. If my EFT or CC is rejected or returned unpaid for any reason, I authorize 24 Hour to resubmit it for payment one or more subsequent times in the future. If amounts I owe to 24 Hour are not paid because an EFT debit or CC does not go through, for any reason my failure to pay those amounts may result in the suspension or termination of my membership, as described in the Agreement. 5. I may stop any EFT (a debit to my checking or savings account by ACH or debit card) by notifying the financial institution named above at least 3 days before the scheduled date of the transfer.	
Authorized Signature:	Date:

Gold Monthly	
Discounted Monthly Dues: 03/18/2026 Through: 04/17/2026 Amount: \$0.00 EFT/RCC Begin Date: 03/18/2026 (first EFT bill date)	Annual Fee Amount: \$ 64.99
Regular Monthly Dues Beginning On: 04/18/2026 Amount: \$41.99 EFT/RCC Begin Date: 04/18/2026	EFT/RCC Begin Date: 04/02/2026 (continuing annually on or about the same date)
AUTHORIZATION FOR DUES DIRECT AND ANNUAL FEE PAYMENTS	
Account Type: Visa Account Holder Name: William Volodarsky Expiration Date:	Name of Depository Institution: Account Number: *****1063 Routing Number (if applicable):
I want amounts I owe to 24 Hour Fitness USA, LLC., ("24 Hour") under this Agreement (the "Agreement") to be paid through one of the following (a) recurring charges to my debit card, (b) recurring debits to my bank account through the ACH ((a) and (b) each an "EFT") or (c) recurring charges to my credit card account ("RCC"), as indicated above. My signature below constitutes my authorization and agreement to the following terms for those EFT or RCC charges: 1. I authorize 24 Hour, (i.) on a monthly basis, to charge my above listed credit card account, or to initiate an EFT from the account I designated above or any successor or replacement card or account, on or about the same day each month (or at month end, if the EFT/RCC date is on a day not contained in a given month), (ii.) for the monthly dues rate indicated above, and any other amounts I owe to 24 Hour under this Agreement, including any fees, taxes, or annual increases in monthly dues (pursuant to Section 3(c) of this Agreement); plus, (iii.) on an annual basis, the Annual Fee indicated above and any annual increases (pursuant to Section 3(c) of this Agreement). If my card or account expires or is replaced, I agree to notify 24 Hour promptly of my new card or account. 2. My authorization and the Agreement will remain in effect until this Agreement is cancelled by 24 Hour, or by me. I may cancel by providing notice to 24 Hour in writing at 150 Sylvan Avenue, Englewood Cliffs, NJ, 07632 or P.O. Box 787, Carlsbad, CA, 92018, by email to cancel@24hourfitness.com or by visiting www.24hourfitness.com/members/cancel. I understand that this Agreement is for a continuous service and 24 Hour will charge me on a monthly basis until I cancel this Agreement. I further understand that under 24 Hour's cancellation policy, which is in Section 6 of this Agreement, I may cancel this Agreement at any time prior to midnight of the third business day of the health studio after the date of this Agreement, excluding Sundays and holidays, and receive a refund of all money I paid. I further understand that if I do not cancel in the first three business days, then the minimum term of this Agreement is any prorated days (up to 6 days) plus my first month and my last month (if applicable) (30 days) and if I cancel upon receipt of my request to cancel 24 Hour will apply any prepaid last month's dues (if applicable) and my club access and membership will end after my paid period ends (which includes any remaining paid days from the monthly billing cycle covering the date that 24 Hour receives my cancellation notice and the prepaid last month). Even after my notice of cancellation, I authorize 24 Hour to charge or debit my account for any amounts I owe under this Agreement up to the date my membership ends and I agree to be bound by the terms and conditions of this Agreement until my membership ends. Notwithstanding any other language in this Agreement, I agree that all rights and obligations of both 24 Hour and me that are intended to survive cancellation of this Agreement will continue after cancellation and/or the end of my membership, to the extent permitted by law. 3. The amounts charged or debited to my account may vary each month from the amount shown above due to a change in the monthly dues, past unpaid dues and fees, increases in applicable taxes, or other fees and charges that I may owe. For EFT (a debit to my checking or savings account, or debit card) charges only, I understand that you will notify me at least 10 days in advance of any EFT debit that will be more than three times the normal monthly debit amount. Upon my written request, you will notify me if the amount of my EFT or RCC will vary by any amount. 4. If my EFT or RCC is rejected or returned unpaid for any reason, I authorize 24 Hour to resubmit it for payment one or more subsequent times in the future. If amounts I owe to 24 Hour are not paid because an EFT debit or RCC does not go through, for any reason my failure to pay those amounts may result in the suspension or termination of my membership, as described in the Agreement. 5. I may stop any EFT (debit to my checking or savings account by ACH or debit card) by notifying the financial institution named above at least 3 days before the scheduled transfer date. 6. If I have more than one agreement with 24 Hour (such as an Upgrade or Additional Services Agreement) and I have designated the same EFT or RCC account for charges under any other agreement as I have under this Agreement, I authorize 24 Hour to make one monthly RCC or EFT debit for all the amounts I owe under all my agreements that are paid through the same EFT or RCC account.	
Authorized Signature: William Volodarsky	Date: 03/18/2026 3:29 P.M.

1. PARTIES

Any use of the term "24 Hour" in this Agreement shall refer to 24 Hour Fitness USA, LLC. 24 Hour and you agree that by signing this Agreement, you purchased a membership or services, agree to all the terms in this Agreement, and agree to follow 24 Hour's Membership Policies and any Rules.

2. MEMBERSHIP

2(a). Nature of Membership: Your membership permits you to use 24 Hour's premises, facilities, equipment and services based on the type of membership purchased. The membership type purchased is notated on page 1 of your agreement. Your membership is non-transferable by you and gives you no rights in 24 Hour, its management, property or operation. 24 Hour may close clubs. 24 Hour may assign or transfer your membership in its sole discretion. 24 Hour can sell memberships at different rates and terms than yours. Certain memberships may not be offered at all times or at all locations and are subject to change or discontinuation without notice. Special promotional memberships or rates are valid only at the Club of Enrollment, unless otherwise noted. It is your responsibility to notify 24 Hour of any change in your address or phone number.

2(b). Membership Type (see Page 1 Membership Type). Silver: If you have a Silver membership (where available), you acknowledge and agree that you are entitled to use only the cardio equipment and weights in your club of enrollment. **Ignite:** If you have an Ignite membership, you are entitled to use only your Club of Enrollment. **Gold:** If you have a Gold membership, you acknowledge and agree that you are entitled to use only clubs covered by your membership. For example, if you purchased a Gold membership in the Northern California region, you will not have access to 24 Hour Fitness® clubs in New York. **National:** If you have a National membership, your membership include access to all Gold-level benefits and access to all 24 Hour Fitness® clubs nationwide. **Platinum:** If you have a Platinum membership, you acknowledge and agree that you are entitled to use the 24 Hour Fitness® clubs covered by your membership. Access to membership amenities is based on membership type, see the Membership Details Page of this Agreement for a complete listing of amenities for your membership type. Access to membership amenities is based on membership type, see the Membership Details Page of this Agreement for a complete listing of amenities for your membership type. You further acknowledge and agree that 24 Hour (1) reserves the right to charge an extra fee and/or extra dues for use of any club not included in your type of membership or for any club additional services and/or amenities than those offered at the time you enrolled, (2) the total number clubs at your membership type may either increase or decrease in the future and nothing in this Agreement shall be construed as a guarantee that your membership type will always provide you access to either a certain number clubs, or to specific clubs; (3) 24 Hour may open new clubs, close, change the designation of clubs, regions and/or create new designations of clubs and regions, and (4) no two 24 Hour clubs are exactly alike and to understand the size, amenities, services and features of a particular club, you will need to visit the club.

2(c). Corporate Memberships: You must be a current employee of a participating company and eligible under the company's guidelines to enroll under a Corporate membership program. By enrolling under a Corporate membership program, you grant 24 Hour the right to verify your eligibility under the company's guidelines (including the right to verify your employment with the company as necessary). In the event you are not currently employed or cease being a current employee of a participating company, 24 Hour reserves the right to immediately terminate your membership and/or require you to pay the full regular price of initiation fees, Annual Fee, and monthly dues.

2(f). Membership Freezes: 24 Hour will freeze your membership if you qualify under 24 Hour's Membership Freeze Policy set forth in the Membership Policies. To be eligible for a membership freeze you must be in good standing with all fees paid and you must be current on your monthly or prepaid dues. If you have a Family membership or add one or more "Add-On" (as defined in Section 3(b) below) membership(s) to a membership and you want to freeze your Add-Ons, you must request to freeze each membership individually. Freezing your (the Primary) membership will not freeze your Add-On membership(s).

2(g). Buddy Pass Rules and Privileges: If you have a Buddy Pass as part of your membership you may designate one (1) individual as your Buddy to bring with you each visit to work out together. You may change your designated Buddy once every six (6) months. Your Buddy is not entitled to access special services, specialized classes, enhanced wellness benefits or other paid programs. Buddy Pass users must show Photo ID and sign a waiver before entering. You, as the host member, must be always present with your buddy. Should you cancel your membership the designated Buddy Pass user will no longer have access to facilities. Minors wishing to use 24 Hour facilities on a Buddy Pass will be required to have a parent/guardian present during the first visit to register the minor Buddy and sign a medical release waiver. If a Buddy attempts to enter the facility without their host member or violates club rules the host member and Buddy's right to access 24 Hour's facilities may be permanently revoked. Designated Buddy Pass users may purchase training services provided that the host member's membership is in good standing. Should a buddy contract for training services the host member must always be present in the facility while the buddy is conducting training. If the host member cancels their membership the buddy's training agreement will be cancelled and all unused/unexpired training sessions will be refunded. 24 Hour Fitness reserves the right to restrict the days and times buddies may access the club. Please see your local club for designated buddy hours.

2(h). Discounted Bundle Pricing: Members who purchase two or more products in a bundled package including but not limited to membership, training, or special services (whether in one purchase or as separate purchases) at a discounted rate acknowledge that the discounted rate is conditional upon the continued subscription to all products included in the bundle. If a member cancels or discontinues any individual subscription within the bundle, the remaining subscription(s) shall no longer be eligible for the bundled discount. Accordingly, the dues and or fees for the remaining subscription(s) may be increased to the non-discounted rate at 24 Hours sole discretion effective the date of cancellation. 24 Hour will provide notice of any such increase to the email address on file.

3. FINANCIAL POLICY & NOTICES

3(a). Dues & Fees: You agree to pay the dues and fees on page 1 and 2. If you are under 18 years of age, 24 Hour requires an adult to promise payment. 24 Hour immediately earns the initiation fees and first and any prepaid last month's dues when you buy your membership, including any and all paid amounts or unpaid portions which are to be paid according to a payment plan. Each year, Member will be required to pay a non-refundable Annual Fee plus applicable taxes, if any, so long as the membership is in effect (the Annual Fee is entirely earned by 24 Hour upon payment). These fees and any prepaid monthly dues are not refundable, except as stated in Section 6 of this Agreement. Whether or not you use the facilities, you must still pay your monthly dues and non-use of the facility or facilities is not a basis for refund of prepaid dues. You agree to pay 24 Hour a fee for any returned check, or other non-payments, such as for insufficient funds, closed account, frozen or declined credit or similar circumstances. The current fee is \$15.00, but is subject to change at 24 Hour's discretion without prior notice.

3(a)(i). Membership Re-Write: If you are an existing 24 Hour Fitness member and request to change to a new membership type, you will be required to sign a new membership agreement (hereinafter referred to as a "Re-Write"). Re-Writing your membership agreement may be subject to Re-Write fees. 24 Hour immediately earns the first and any prepaid last month's dues on your new membership agreement.

- Pro-rated monthly dues and or / any prepaid dues paid on your current membership agreement will first be applied to fees associated with rewriting to a new membership. Any remaining monies will be credited to your new membership and applied to future dues or fees.
- Existing members may not be eligible for special promotional pricing when re-writing to a new membership type. Your new membership agreement supersedes all previous membership agreements.

3(b). Family Memberships and Add-On Memberships: If you have a Family Membership or add one or more "add-on" membership(s) to a membership (hereinafter referred to as ("Add-Ons"), one member is financially responsible for all Add-On members' dues and fees; and is hereinafter referred to as the "Primary Member". If the Primary Member cancels his or her membership, the Add-On membership(s) will NOT be cancelled UNLESS the Primary Member specifically requests cancellation of the Add-On membership(s). Cancellation of Add-On memberships can be requested by any method used for cancellation of the Primary Membership, including by written notice to 24 Hour Fitness, P.O. Box 787, Carlsbad, CA 92018; by email to cancel@24hourfitness.com; or online by visiting www.24hourfitness.com/members/cancel. If a Primary Member with one or more Add-On memberships cancels without separately cancelling the Add-On(s), those Add-On memberships will become Primary Member(s), meaning they will become financially responsible for their own dues and fees, remain active and continue to incur charges for membership dues and fees. In the case where an Add-on member becomes a Primary Member by splitting from their Primary Member, they will become financially responsible for all dues and fees. If the Add-On member is receiving a discount on dues or fees 24 Hour Fitness may, at its sole discretion, increase those charges—both membership dues and fees to the non-discounted Add-On rate effective the date the Add-on member becomes a Primary Member. 24 Hour will provide notice of any such increase to the email address on file. To maintain an active membership, each Add-On member must pay all outstanding balances and provide a valid payment method for future charges. Failure to do so may result in cancellation, and any re-enrollment will be subject to the then current membership rates.

3(c)(i). Right to Increase Dues: If you have a Monthly Payment Agreement—Membership, or Special Privilege—24 Hour may increase your monthly dues once per calendar year per agreement. Any such increase will not occur during the first twelve (12) months of your agreement. The twelve (12) month period starts on the day your agreement is signed. The increase described in this paragraph is in addition to any other increases authorized under this agreement.

(ii). **Right to Increase Annual Fee:** Each year, you will be charged an Annual Fee in addition to your monthly dues, so long as the membership is in effect. 24 Hour may increase the amount of your Annual Fee once per calendar year.

3(d). Charges, Fees & Taxes: If you or your guests incur any charges for goods or services offered by 24 Hour, including but not limited to, gym access, fitness services, special services or similar offerings, you agree to pay all associated fees in accordance with the then current tax rates in effect. 24 Hour may add to your prepaid dues, monthly dues, service dues, additional sessions, or any goods or services any taxes, surcharges, or other amounts that federal, state, or local governments require to be collected, including sales tax, use tax, or other applicable governmental charges. Additionally, you may be subject to processing costs and/ or other applicable fees, which may be imposed at 24 Hour's discretion and applied without prior notice.

3(e). Automatic Deductions: At any time, you can change the method of payment you have designated via My24 online member services (on www.24hourfitness.com), or by updating your information in person at a Club. Please allow up to 5 days from the day 24 Hour receives your request for the change to take effect. If there is an error in an amount billed under this Agreement, you must notify us within 30 days after the date the EFT debit or credit card charge was made, or we will not be obligated to re-credit your account.

3(f). Automatic Monthly Payment Failure: If we are unable to process a EFT/RCC monthly charge for any reason, 24 Hour may suspend or terminate your membership, privileges or Fitness Services Agreement. You will have 30 days from the date we are unable to process the EFT/RCC monthly charge to reinstate your membership, privileges, or Fitness Services Agreement by providing a valid EFT/RCC authorization. Upon reinstatement, all your past due amounts, including a \$15 fee (as described in Section 3(a)) will be electronically deducted using the newly authorized EFT/RCC. If you do not provide a valid EFT/RCC authorization within the 30 days, your membership may be terminated "for cause" by 24 Hour and the terms of the "Termination for Cause by 24 Hour" paragraph in Section 6 will apply; you will not receive a refund of any initiation fees, Annual Fees, or of first and any prepaid last month's dues.

3(g). Delivery of Notices and Communications Related to This Agreement and Your Membership. You agree to electronic delivery of notices and records relating to this Agreement and to your 24 Hour membership ("Notices") by electronic delivery instead of in paper form through postal delivery (you will still receive postal delivery of notices or records required by regulation or policy to be sent by postal delivery). Notices eligible for electronic delivery include notices regarding dues and fee increases, annual dues, electronic payment amounts, payment processing refusal, service changes, renewal, and similar notices relating to the Agreement and/or your membership. We will deliver Notices electronically to you by emailing them to the email address you have provided to us in this Agreement and you agree to keep that email address active and/or to update it as necessary. With respect to communications regarding your membership, service changes, club information, and any amounts you owe 24 Hour, you also agree that 24 Hour may contact you on your home phone and on any cell phone number that you provide to 24 Hour and that such contact may be by telephone (including autodialed calls), pre-recorded or artificial message, text message or other means. You may change your primary e-mail address, phone number or other contact information, or withdraw your consent to receive Notices electronically via My24 online member services (www.24hourfitness.com). There is no fee if you withdraw your consent to receive Notices electronically.

3(h). Marketing Communications. You agree that, from time to time, 24 Hour Fitness may make special offers available to you through direct mail, email, telephone, SMS/text message, or other means permitted by law. Additionally, in connection with such offers, 24 Hour Fitness marketing emails may include third party advertisements, and you may receive marketing communications directly from third-party partners. While 24 Hour Fitness does not share your email address or other personal information with these third parties, it may facilitate such communications on their behalf or permit them to contact you using information you have provided, in accordance with applicable law and the [24 Hour Fitness Privacy Policy](#). Additionally, you consent to receive electronic communications from 24 Hour Fitness for transactional purposes only (e.g., payment confirmations and account notices). You can unsubscribe at any time by changing your communications preferences via MyAccount at www.24hourfitness.com. If you do so, you will continue to receive all transactional messages, including transactional SMS/text messages and transactional emails, from 24 Hour Fitness.

3(i). By executing this Agreement you agree to be bound by the Privacy Policies referred to in the Membership Policies.

4. FACILITIES AND SERVICES

4(a). Description of Services and Hours of Access: For specific hours of access of any club, please visit www.24hourfitness.com. Not all facilities or services are open or available 24 hours a day and 24 Hour may alter the hours of operation. Your membership with 24 Hour shall include access to the facility or facilities as shown and limited by the Membership Type identified on page 1 and amenities as identified on Membership Details Page, including the cardiovascular, strength and conditioning equipment at those facilities, as may be applicable. Your membership agreement does not include group training or Custom Coaching, which is an optional service subject to a separate agreement with 24 Hour. 24 Hour also provides a number of group exercise classes some of which are optional services and may require payment of a fee. Other optional services that may require additional fees include, but are not limited to, basketball leagues, class fees, class reservation fees, guest privileges, or executive lockers. 24 Hour reserves the right to charge a separate participation or reservation fee for such optional services.

4(b). Changes in Equipment or Classes: 24 Hour reserves the right at any time to make reasonable changes to the type or quantity of group exercise classes, special services, equipment offered, to alter the times of group exercise classes, and to amend the cost of, add, modify and/or eliminate any program, equipment, facility, activity, class or service in 24 Hour's reasonable discretion. Classes and equipment are available subject to demand. Any of the facilities or services, including but not limited to classes, equipment, special services, basketball, saunas, pools, and hot tubs may have limited hours or may be discontinued altogether at any time and may be offered on a "first come first serve basis."

4(c). Temporary Closures: If the health club facility is closed for a period longer than 30 days through no fault of the buyer, the buyer is entitled to either extend the contract for a period equal to that during which the facility is closed or to receive a prorated refund of the amount paid by the buyer under the contract.

5. REPRESENTATIONS

5(a). Physical Condition & No Medical Advice: You represent that you are in good physical condition and have no medical reason or impairment that might prevent you from your intended use of 24 Hour's facilities. As such, you acknowledge that 24 Hour did not give you medical advice before you joined, and cannot give you any after you join, relating to your physical condition and ability to use the facilities. If you have any health or medical concerns now or after you join, discuss them with your doctor before using the facilities. You acknowledge that you have been informed that 24 Hour has available a questionnaire designed for you to determine whether you should consult a physician before participating in an exercise program and that you understand 24 Hour assumes no liability for any physical activity you undertake, including without limitation if you undertake physical activity without consulting your doctor or against the advice of your doctor.

5(b). Limited Use: If you know or should know you have any problem that might prevent you from using all of 24 Hour's facilities and you sign this agreement, you agree that your membership is limited accordingly. However, because it's your choice, you still must pay your dues as if you could use all the facilities.

5(c). Liability for Property: 24 Hour is not liable to you or your guest for any personal property that is damaged, lost, or stolen while on or around 24 Hour's premises including, but not limited to, a vehicle or its contents or any property left in a locker. If you or your guest cause any damage to 24 Hour's facilities, you are liable to 24 Hour for its cost of repair or replacement.

5(d). Entire Agreement & Enforcement: You acknowledge that neither 24 Hour, nor anyone else, made any representations or promises upon which you relied that are not stated in this agreement. Handwritten changes to this agreement are not valid. This Agreement contains the entire agreement between you and 24 Hour, and replaces any prior agreements, representations or promises by or between you and 24 Hour, whether written or oral, with respect to the subject matter of this Agreement.

6. CANCELLATION - TERMINATION – REFUNDS

6(a). Your 3-Day Cancellation Right: Notice to Customer: You are entitled to a copy of this contract at the time you sign it. You may cancel this contract at any time before midnight of the third operating day after receiving a copy of this contract. If you choose to cancel this contract, you must either: (1) Send a signed and dated written notice of cancellation by registered or certified mail, return receipt requested to: 24 Hour Fitness, 150 Sylvan Avenue, Englewood Cliffs, NJ, 07632 or P.O. Box 787, Carlsbad, California, 92018; (2) Personally deliver a signed and dated written notice of cancellation to your club of enrollment. Within 30 days of when 24 Hour receives written notice in the manner described above, 24 Hour will refund all the money you paid.

6(b). Cancellation Rights & Refund: Initiation fees, Annual Fee, and first and any prepaid last month's dues are non-refundable, unless specifically stated otherwise in this Agreement. You may cancel this Agreement and receive a refund of unused prepaid dues if you qualify as follows:

6(b)(1). You Are Permanently Disabled or You Die: This contract is subject to cancellation by notice sent by registered or certified mail, return receipt requested, or personally delivered, to: 24 Hour Fitness 150 Sylvan Avenue, Englewood Cliffs, NJ, 07632 upon the buyer's death or permanent disability, if the permanent

disability is fully described and confirmed to the health club by a physician. In a cancellation under this subsection, the health club may retain the portion of the total contract price representing the services used plus reimbursement for expenses incurred in an amount not to exceed 10% of the total contract price.

6(b)(2). You Move: This contract is subject to cancellation by notice sent by registered or certified mail, return receipt requested, or personally delivered, to: 24 Hour Fitness 150 Sylvan Avenue, Englewood Cliffs, NJ, 07632 upon the buyer's change of permanent residence to a location more than 25 miles from the health club or an affiliated health club offering the same or similar services and facilities at no additional expense to the buyer. In a cancellation under this subsection, the health club may require proof of the new permanent residence and may retain a prorated share of the total contract price based upon the date the notice was received plus reimbursement for expenses incurred in an amount not to exceed 10% of the total contract price. If you have a Gold (Regional) membership and move outside your designated region, your membership is not transferrable. You may cancel your current Gold (Regional) membership and re-enroll in the new region to where you move by contacting a club manager.

6(b)(3) MISSED OPENING DATE: If your club of enrollment is not open for business by the date represented on the front of this agreement you may cancel this agreement and you are entitled to receive a full refund of any deposit or payment on the contract.

6(b)(4) Military Deployment: If you are a member of the United States military, including a member of the National Guard, military reserves, or regular United States armed forces, who is serving on active duty and deployed or otherwise serving outside of this state during the term of this Agreement. You must provide written evidence of your deployment within 90 days after you receive notice of such deployment or service outside the state. If you prefer, instead of cancelling you may freeze your membership at no additional cost and your membership rate will not change while your membership is on freeze (see the Membership Policies for more details on how to freeze a membership). Cancellation under this section is subject to your notice sent by registered or certified mail, return receipt requested, or personally delivered, to 24 Hour Fitness, 150 Sylvan Avenue, Englewood Cliffs, NJ, 07632 or P.O. Box 787, Carlsbad, California 92018.

6(b)(5). Notice & Effective Date: You or your estate must send written notice and proof of the event within 30 days after it happens, unless specifically stated otherwise in this Agreement. Cancellation is effective as of the date of the event or the last date you used 24 Hour's facilities, whichever is later. If your notice is late or lacks proof, 24 Hour may set the effective date when 24 Hour receives the notice.

6(b)(6). Refund Calculation: If you cancel your membership under Section 6(b)(4) you will receive a pro rata refund calculated by multiplying the number of months remaining on your term by the gross monthly payment, which is arrived at by adding your prepaid dues and initiation fee divided by the total number of months in your prepaid term. This facility maintains a bond or other security with the Director of the Division of Consumer Affairs to protect buyers of these contracts who are damaged or suffer any loss by reason of breach of contract or bankruptcy by the seller. In the event that you suffer any loss by reason of breach of contract or bankruptcy by the seller, please contact:

Department of Law and Public Safety
Division of Consumer Affairs
Office of Consumer Protection
Regulated Business Section
P.O. Box 45028, Newark, NJ 07101
Tel: (973) 504-6370

6(c). Termination of Monthly Payment Agreements-Membership, Upgrade, and Special Privilege: You may terminate your Monthly Payment Agreement (Membership, and/or Special Privilege) by providing written notice to 24 Hour Fitness, P.O. Box 787, Carlsbad, CA 92018; email cancel@24hourfitness.com; or visit www.24hourfitness.com/members/cancel/. Once 24 Hour has received notice of your request to terminate your Agreement, your Agreement will remain in effect until the expiration on both (1) your current monthly billing cycle, if the billing cycle has already begun, and (2) the 30-day period covered by your pre-paid last month's dues. For example, if your monthly billing cycle begins on March 1, and 24 Hour Fitness receives notice of your request to terminate your Agreement on March 15, your March 1 dues will cover your Agreement through March 31 and your pre-paid last month's dues will cover your Agreement for the following 30 days, so you would have Agreement privileges for 46 days following 24 Hour's receipt of your termination notice, and your agreement privileges would end on April 30. If you did not prepay last month's dues, your club access and membership will terminate at the end of the then paid term.

6(d). Termination of Prepaid (Limited) Membership: If you have a prepaid membership, you may not terminate it during the Prepaid Period (or get a refund), unless specifically stated otherwise in Sections 6(a) or 6(b).

6(e). Termination of Family and Add-On Memberships: If you have a Family Membership or one or more other Add-On membership(s) and you want to terminate your add Add-Ons, you must request to terminate each Add-On membership individually. Terminating your (the Primary) membership will NOT terminate your Add-On membership(s) UNLESS specifically requested. If the Primary Member is paying for an Add-On membership, and does not separately request to cancel the Add-On membership agreement(s), the Add-On member(s) will continue to accrue a balance for dues and annual fees, as applicable. To remain active, the Add-On(s) will be required to pay any balance owed and provide a new method of payment for future charges. If the Add-On member does not pay the remaining balance owed and provide a method of payment for future dues charges, the Add-On membership may be cancelled and would need to rejoin at the then current rates. **If you have provided your credit card, or any other authorized form of payment, to pay for the dues of any other member, including an Add-On member, and wish to revoke that payment authorization, you must either (1) cancel that separate membership OR (2) identify that membership to 24 Hour Fitness and revoke payment authorization.**

6(f). Termination for Cause by 24 Hour: 24 Hour may, at its option, terminate your membership if (1) you fail to complete all signature lines and required initial blocks, (2) you fail to make timely payments under any payment plan, (3) any monthly payments or dues are late, (4) the monthly EFT/RCC payments or dues are interrupted or discontinued for any reason and you or your cosigner do not provide an acceptable alternative, (5) you fail to follow any of 24 Hour's Membership Policies or club Rules or violate any part of this Agreement, or (6) your conduct is improper or harmful to the best interest of 24 Hour or its members. Termination is effective on the date 24 Hour mails a written notice to your last known address. You are liable for all financial obligations until that date.

6(g). Termination Without Cause by 24 Hour: 24 Hour reserves the right to terminate your membership for any reason not stated above and not prohibited by law. If 24 Hour does so, it will mail a written termination notice to your last known address and refund any unused prepaid dues.

6(h). Termination on Club Closure or Move: If 24 Hour permanently closes or moves your Club of Enrollment, 24 Hour, at its option, will either (1) transfer your membership to a comparable club location within 10 miles of your Club of Enrollment, or (2) terminate this Agreement on the date of closing. If your membership is not transferred, then as of the date of closing you will not have to pay further monthly dues and 24 Hour will refund any unused prepaid dues. You are not entitled to a refund if 24 Hour can transfer your membership to a comparable club within 10 miles of your Club of Enrollment.

6(i). Modification of MODUS™ Group Training Benefits: Should 24 Hour elect to discontinue MODUS™ group training, any Diamond membership shall be automatically converted to the next highest membership benefit level and if applicable a pro-rata refund will be issued.

6(j). Effect of Termination & Financial Obligation: Upon the effective date of cancellation or termination, your right to use 24 Hour's facilities ends and 24 Hour can deny you access to any or all 24 Hour clubs. If you owe 24 Hour money when your membership ends, you still owe the money, and 24 Hour will deduct it from any refund you might have coming. If there is not enough money to cover the debt in the refund, you must pay the balance. If you terminate your Monthly Payment Membership or your prepaid membership expires and you want to rejoin, you must buy a new membership at the then current rate.

7. APPLICABLE LAW

This Agreement and/or any legal action related to your 24 Hour membership shall be governed by, construed and enforced in accordance with the laws of the State where you live at the time this Agreement is executed as indicated in the Personal Information section on the first page of this Agreement, without reference to choice of law principles. Exclusive venue for any legal action related to this Agreement or your 24 Hour membership shall be brought in any Federal or State court in the jurisdiction in which the Agreement was executed ("Applicable Courts"). The parties waive any objection that they have or may have to venue in the Applicable Courts including, but not limited to, any objection that the Applicable Courts are an inconvenient forum. In addition, the parties waive, to the fullest extent they may effectively do so, any objection that they have or may have to the transfer of any legal action to the Applicable Courts.

8. LIMITATION OF LIABILITY

Unless controlling legal authority requires otherwise, any award by an arbitrator or a court is limited to actual compensatory damages. Specifically, neither an arbitrator nor a court can award either party any indirect, special, incidental or consequential damages, even if one party told the other party that they might suffer these damages.

9. AGREEMENT TO ARBITRATE--INCLUDING WAIVING YOUR RIGHT TO HAVE YOUR CASE DECIDED BY A JUDGE OR JURY, AND OF YOUR RIGHT TO PARTICIPATE IN A CLASS ACTION**9(a). Your Agreement to Arbitrate All Claims Against 24 Hour Other Than Claims for Personal Injury and Small Claims**

YOU AGREE THAT ANY CLAIM THAT YOU NOW HAVE, OR MAY IN THE FUTURE HAVE, AGAINST 24 HOUR, AND ANY PRESENT OR FUTURE CLAIMS YOU MAY HAVE AGAINST ANY EMPLOYEE, MANAGER, AGENT OR REPRESENTATIVE OF 24 HOUR (ALL TOGETHER, "THE 24 HOUR PARTIES") WILL BE DECIDED IN ARBITRATION RATHER THAN IN COURT. THIS MEANS THAT YOU AGREE TO GIVE UP YOUR RIGHT TO HAVE YOUR CLAIMS DECIDED IN COURT BY A JUDGE OR JURY. INSTEAD, YOUR CLAIMS WILL BE DECIDED BY A SINGLE ARBITRATOR UNDER THE COMMERCIAL ARBITRATION RULES OF THE AMERICAN ARBITRATION ASSOCIATION THEN IN EFFECT, WITH THE ARBITRATION TO BE HELD AT A LOCATION NEAR YOUR CLUB OF ENROLLMENT.

RULE R-8 OF THE AMERICAN ARBITRATION ASSOCIATION'S COMMERCIAL ARBITRATION RULES ALLOWS A PARTY TO ASK THE ARBITRATOR TO CONSOLIDATE TWO OR MORE ARBITRATIONS INTO A SINGLE PROCEEDING, AND TO REQUEST THAT ADDITIONAL PARTIES BE JOINED TO (MADE PART OF) AN ONGOING ARBITRATION. YOU AGREE THAT ALL ARBITRATIONS THAT YOU MAY DEMAND WILL BE CONSOLIDATED. YOU ALSO AGREE THAT YOU WILL NOT OBJECT IF 24 HOUR ASKS TO HAVE YOUR ARBITRATION CONSOLIDATED WITH ARBITRATIONS DEMANDED BY OTHERS IF YOUR ARBITRATION AND OTHERS' ARBITRATIONS HAVE COMMON ISSUES OF LAW AND/OR FACT.

YOU AGREE THAT YOU WILL NOT MAKE ANY CLAIMS AGAINST THE 24 HOUR PARTIES AS A MEMBER OF ANY CLASS ACTION. YOU ALSO AGREE NOT TO PARTICIPATE AS A PARTY TO ANY LEGAL PROCEEDING BROUGHT ON BEHALF OF THE GOVERNMENT BY AN ATTORNEY GENERAL IF ANY OF THE 24 HOUR PARTIES 24 HOUR IS A PARTY TO THE LEGAL PROCEEDING.

YOU ARE NOT GIVING UP YOUR RIGHT TO FILE A LAWSUIT IN COURT IF YOUR CLAIMS ARE ONLY FOR DAMAGES FOR PERSONAL INJURIES, OR IS FILED IN A COURT THAT ONLY HEARS SMALL CLAIMS.

YOU MAY OPT OUT OF THIS PARAGRAPH

9(a) BY GIVING WRITTEN NOTICE TO 24 HOUR FITNESS, P.O. BOX 787, CARLSBAD, CA 92018, WITHIN 90 DAYS OF THE DATE YOU SIGN THIS AGREEMENT.

9(b). Fees and costs. Payment of all filing, administration and arbitrator fees will be governed by the AAA's rules, unless otherwise stated in this Agreement. If the value of the relief sought is \$10,000 or less, at your request, 24 Hour will pay all filing, administration, and arbitrator fees associated with the arbitration. If the value of the relief sought is more than \$10,000 and you are able to demonstrate that the costs of arbitration will be prohibitive as compared to the costs of litigation, 24 Hour will pay as much of the filing, administration, and arbitrator fees as the arbitrator deems necessary to prevent the arbitration from being cost-prohibitive. In the event the arbitrator determines the claim(s) you assert in the arbitration to be frivolous, you agree to reimburse 24 Hour for all fees associated with arbitration paid by 24 Hour on your behalf, which you otherwise would be obligated to pay under AAA's rules.

9(c). Arbitrator will resolve any issues over application or enforcement of this clause.

The arbitrator, and not any Federal, State, or local court or agency shall have exclusive authority to resolve any dispute relating to the interpretation, applicability, enforceability or formation of this Agreement including, but not limited to any claim that all or any part of this Agreement is void or voidable.

9(d). Severability and Survival. If the prohibition against class actions and other claims brought on behalf of third parties contained above is found to be unenforceable, then all of the preceding language in this arbitration Section 9 will be null and void. This arbitration agreement will survive the termination of your relationship with 24 Hour.

10. RELEASE OF LIABILITY AND ASSUMPTION OF RISK

Using the 24 Hour Fitness USA, LLC. (24 Hour) facilities, services, or activities involves the risk of injury to you or your guest, whether you or someone else causes it. Specific risks vary from one activity to another and the risks range from minor injuries to major injuries, such as catastrophic injuries including death. **In consideration of your acceptance of the benefits under this agreement, you understand and voluntarily accept this risk and agree that 24 Hour, its officers, directors, employees, volunteers, agents and independent contractors will not be liable for any injury, including, without limitation, personal, bodily, or mental injury, economic loss or any damage to you, your spouse, guests, unborn child, or relatives resulting from the negligence of 24 Hour or anyone on 24 Hour's behalf or anyone else whether related to exercise or not and whether using 24 Hour's services on its premises or not.** You agree to indemnify, defend and hold 24 Hour harmless against any liability, damages, defense costs, including attorneys' fees, or from any other costs incurred in connection with claims for bodily injury, wrongful death or property damage caused by your negligence or other wrongful acts or omissions. You further agree to hold harmless, defend and indemnify 24 Hour from all liability, damages, defense costs, including attorneys' fees, or from any other costs incurred in connection with claims for bodily injury, wrongful death or property damage brought by you, your guests, or minors, even if 24 Hour Fitness was negligent. Further, you understand and acknowledge that 24 Hour does not manufacture fitness or other equipment at its facilities, but purchases and/or leases equipment. You understand and acknowledge that 24 Hour is providing recreational services and may not be held liable for defective products.



Membership Details

Member Name: William Volodarsky
Member Number: MBR16137682
Agreement Number: 24S15851089
Membership Type: Gold

<u>What you get:</u>	<u>Gold</u>
Free Weights	✓
Cardio Equipment	✓
Functional Training & Turf Zone	✓
TRX Suspension Training	✓
Strength Training Machines	✓
Olympic Training Rigs	✓
Locker Rooms	✓
Free WiFi	✓
24GO® Fitness App	✓
24 Smart Start™ Plan	30 Days
24GO® On-Demand Workouts	✓
GX24® Virtual & 24GO TV™ Classes	✓
GX24® Studio Classes	✓
GX24® Cycle Classes	✓
Basketball Court	✓
Racquetball Court	✓
Lap Pool	✓
Sauna	✓
Steam Room	✓
Whirlpool	✓
Club Access	Regional
1 FREE Buddy Pass	

Facilities, classes and amenities vary by location. 24GO® access varies by membership level.



Physical Activity Readiness Questionnaire (PAR-Q)

PAR-Q & YOU – A Questionnaire for People Aged 15 – 69

Regular physical activity is fun and healthy, and increasingly more people are starting to become more active every day. Being more active is very safe for most people. However, some people should check with their doctor before they start becoming much more physically active.

If you are planning to become much more physically active than you are now, start by answering the seven questions in the box below. If you are between the ages of 15 and 69, the PAR-Q will tell you if you should check with your doctor before you start. If you are over 69 years of age, and you are not used to being very active, check with your doctor.

Common sense is your best guide when you answer these questions. Please read the questions carefully and answer each one honestly.

1. Has your doctor ever said that you have a heart condition and that you should only do physical activity recommended by a doctor?
2. Do you feel pain in your chest when you do physical activity?
3. In the past month, have you had chest pain when you were not doing physical activity?
4. Do you lose your balance because of dizziness or do you ever lose consciousness?
5. Do you have a bone or joint problem (for example, back, knee or hip) that could be made worse by a change in your physical activity?
6. Is your doctor currently prescribing drugs (for example, water pills) for your blood pressure or heart condition?
7. Do you know of **any other reason** why you should not do physical activity?

If you answered YES to one or more questions, talk with your doctor by phone or in person BEFORE you start becoming much more physically active or BEFORE you have a fitness appraisal. Tell your doctor about the PAR-Q and which questions you answered YES.

- You may be able to do any activity you want – as long as you start slowly and build up gradually. Or, you may need to restrict your activities to those which are safe for you. Talk with your doctor about the kinds of activities you wish to participate in and follow his/her advice.
- Find out which community programs are safe and helpful to you.

If you answered NO honestly to all PAR-Q questions, you can be reasonably sure that you can:

- Start becoming much more physically active – begin slowly and build up gradually. This is the safest and easiest way to go.
- Take part in a fitness appraisal – speak to our personal training department.

DELAY BECOMING MUCH MORE ACTIVE IF:

- If you are not feeling well because of a temporary illness such as a cold or a fever – wait until you feel better; or
- If you are or may become pregnant – talk with your doctor before you start becoming more active.

PLEASE NOTE:

If your health changes so that you then answer YES to any of the above questions, tell your fitness or health professional. Ask whether you should change your physical activity plan.

**Sales Receipt**

00642 - Super-Sport
150 Sylvan Avenue
Englewood Cliffs, NJ 07632

Employee: 1498X

Member Name	Member #	Agreement	Agreement Type	Amount paid at Sales Desk	Amount to be paid at Front Desk	Total
William Volodarsky	MBR16137682	24S15851089	Membership	\$ 0.00	\$ 0.00	\$ 44.77

MEMBER SIGNATURE: William Volodarsky

DATE SIGNED: 03/18/2026

TOTAL PAYMENT OBLIGATION \$44.77